



Yellowhammer Fund v. Marshall (LEAD), Docket No. 2:23-cv-00450 (M.D. Ala. Jul 31, 2023), Court Docket

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U.S. District Court
Alabama Middle District (Montgomery)
CIVIL DOCKET FOR CASE #: 2:23-cv-00450-MHT-KFP

Yellowhammer Fund v. Marshall (LEAD)

Date Filed: Jul 31, 2023
Status: Closed
Nature of suit: 440 Civil Rights: Other
Assigned to: Honorable Judge Myron H. Thompson
Cause: 42:1983 Civil Rights Act
Date terminated: 2025-03-31
Jurisdiction: Federal Question
Jury demand: None
Member cases: 2:23-cv-00451-MHT-KFP
Referred to: Magistrate Judge Kelly F. Pate

Parties and Attorneys

Plaintiff

Yellowhammer Fund

on behalf of itself and its clients

Representation

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Consol Plaintiff

West Alabama Women's Center
on behalf of themselves and their staff

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Consol Plaintiff

Yashica Robinson
M.D., on behalf of herself, her patients and staff

Representation

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Consol Plaintiff

Alabama Women's Center
on behalf of themselves, their patients and staff
TERMINATED: 06/24/2024

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Consol Plaintiff

Alabama Center for Reproductive Alternatives, LLC
doing business as: **Alabama Women's Center**

Representation

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TERMINATED: 08/26/2024
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Defendant

Steve Marshall

Attorney General of Alabama, in his official capacity

Representation

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ATTORNEY TO BE NOTICED

Docket Entries

Numbers shown are court assigned numbers.

Entry #	Filing Date	Description
1	Jul 31, 2023	COMPLAINT against Steve Marshall (Filing fee \$ 402 receipt number AALMDC-3477822.), filed by Yellowhammer Fund. 90 day Rule 4m deadline set for 10/30/2023. (Attachments: # 1 Civil Cover Sheet, # 2 Summons)(Light, Ashley) (Entered: 07/31/2023)
2	Jul 31, 2023	Motion for Attorney Jamila Johnson to Appear Pro Hac Vice (Filing fee \$ 75 receipt number AALMDC-3477849.) by Yellowhammer Fund. (Attachments: # 1 Certificate of Good Standing)(Light, Ashley) Modified on 7/31/2023 to reflect requesting Atty (bes,). (Entered: 07/31/2023)
3	Jul 31, 2023	Motion for Attorney Allison L. Zimmer to Appear Pro Hac Vice (Filing fee \$ 75 receipt number AALMDC-3477852.) by Yellowhammer Fund. (Attachments: # 1 Certificate of Good Standing)(Light, Ashley) Modified on 7/31/2023 to reflect requesting atty (bes,). (Entered: 07/31/2023)
4	Jul 31, 2023	Motion for Attorney Paige Suelzle to Appear Pro Hac Vice (Filing fee \$ 75 receipt number AALMDC-3477864.) by Yellowhammer Fund. (Attachments: # 1 Certificate of Good Standing)(Light, Ashley) Modified on 7/31/2023 to reflect requesting atty (bes,). (Entered: 07/31/2023)
5	Jul 31, 2023	Motion for Attorney Krista Ann Dolan to Appear Pro Hac Vice (Filing fee \$ 75 receipt number AALMDC-3477865.) by Yellowhammer Fund. (Attachments: # 1 Certificate of Good Standing)(Light, Ashley) Modified on 7/31/2023 to reflect requesting atty (bes,). (Entered: 07/31/2023)
6	Jul 31, 2023	Corporate/Conflict Disclosure Statement by Yellowhammer Fund. (Light, Ashley) (Entered: 07/31/2023)
7	Jul 31, 2023	Case assigned to Magistrate Judge Kelly F. Pate as Presiding Judge. (bes,) (Entered: 07/31/2023)
8	Jul 31, 2023	NOTICE of Assignment to Magistrate Judge sent to counsel for (PLF) Yellowhammer Fund. (bes,) (Entered: 07/31/2023)
9	Jul 31, 2023	Summons Issued as to Steve Marshall.NOTICE TO COUNSEL: Summons have been issued. Please print copies necessary for service. (bes,) (Entered: 07/31/2023)
10	Jul 31, 2023	TEXT ORDER granting 2 , 3 , 4 , & 5 Motions for Leave to Appear Pro Hac Vice. Signed by Magistrate Judge Kelly F. Pate on 7/31/2023. (No PDF attached to this entry) (bes,) (Entered: 07/31/2023)
23	Jul 31, 2023	(COPY OF COMPLAINT FILED IN 23cv451) COMPLAINT against Steve Marshall, William R. Adair, T. Kirke Adams, Scott Anderson, Daryl D. Bailey, Jeffrey Wade Barksdale, Stephen M. Billy, Keith Blackwood, Jennifer Bray, Robert L. Broussard, Danny Carr, Matthew Casey, Pamela Casey, Rick Chancey, Chris Connolly, Champ Crocker, Joseph D. Ficquette, Steven D. Giddens, Russ Goodman, Gregory S. Griggers, Andrew C. Hamlin, Lyle Harmon, Hal Hughston, Errek P. Jett, Brian C.T. Jones, Brian A. McVeigh, Walter M. Merrell, III, Jason R. Pierce, Ben C. Reeves, Jr., CJ Robinson, Mike Segrest, Summer McWhorter Summerford, Scott A. Slatton, James H. Tarbox, Charlotte M. Tesmer, Robert Turner, Jr., Jessica Ventiere, Lynneice Olive Washington, Todd Watson, Hays Webb, Joseph Willoughby, Robert E. Wilters, Stephen K. Winters, filed by West Alabama Women's Center, Yashica Robinson, Alabama Women's Center (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5, # 6 Exhibit 6)(cwl,) (Entered: 08/21/2023)

Entry #	Filing Date	Description
11	Aug 2, 2023	SUMMONS Returned Executed by Yellowhammer Fund. Steve Marshall served on 8/1/2023, answer due 8/22/2023. (Light, Ashley) (Entered: 08/02/2023)
24	Aug 2, 2023	(COPY OF MOTION FILED IN 23cv-451) Joint MOTION to Dismiss the District Attorney Defendants by Alabama Women's Center, Yashica Robinson, West Alabama Women's Center, Steve Marshall, William R. Adair, T. Kirke Adams, Scott Anderson, Daryl D. Bailey, Jeffrey Wade Barksdale, Stephen M. Billy, Keith Blackwood, Jennifer Bray, Robert L. Broussard, Danny Carr, Matthew Casey, Pamela Casey, Rick Chancey, Chris Connolly, Champ Crocker, Joseph D. Ficquette, Steven D. Giddens, Russ Goodman, Gregory S. Griggers, Andrew C. Hamlin, Lyle Harmon, Hal Hughston, Errek P. Jett, Brian C.T. Jones, Brian A. McVeigh, Walter M. Merrell, III, Jason R. Pierce, Ben C. Reeves, Jr., CJ Robinson, Mike Segrest, Summer McWhorter Summerford, Scott A. Slatton, James H. Tarbox, Charlotte M. Tesmer, Robert Turner, Jr., Jessica Ventiere, Lynneice Olive Washington, Todd Watson, Hays Webb, Joseph Willoughby, Robert E. Wilters, Stephen K. Winters (Attachments: # 1 Text of Proposed Order)(cwl,) (Entered: 08/21/2023)
25	Aug 3, 2023	(COPY OF ORDER ENTERED IN 23cv451) CONSENT ORDER: it is ORDERED that the 17 joint motion to dismiss is granted and that the following "District Attorney defendants" are dismissed without prejudice from this action, as further set out in order; The District Attorney Defendants and their employees, agents, and successors in office shall be bound by the terms of any injunctive (including but not limited to a temporary restraining order or preliminary injunction), declaratory, and/or other relief against the Attorney General of Alabama and/or any of the other defendants by any court in this action so long as such relief remains in effect as to any party, as further set out in order; further ORDERED that the clerk of the court shall terminate the above District Attorney Defendants as parties to this action. Signed by Honorable Judge Myron H. Thompson on 8/3/2023. (cwl,) (Entered: 08/21/2023)
12	Aug 11, 2023	NOTICE of Appearance by James William Davis on behalf of Steve Marshall (Davis, James) (Entered: 08/11/2023)
13	Aug 11, 2023	Corporate/Conflict Disclosure Statement by Steve Marshall. (Davis, James) (Entered: 08/11/2023)
14	Aug 11, 2023	NOTICE of Assignment to Magistrate Judge sent to counsel for (DEF) Steve Marshall (cwl,) (Entered: 08/11/2023)
15	Aug 11, 2023	NOTICE of Appearance by Benjamin Matthew Seiss on behalf of Steve Marshall (Seiss, Benjamin) (Entered: 08/11/2023)
16	Aug 14, 2023	ORDER: Counsel for the parties are DIRECTED to complete the appropriate attached form and send it to the Clerk of the Court by September 5, 2023, as further set out in order. Neither the consent form nor the request for reassignment form should be filed electronically. Signed by Magistrate Judge Kelly F. Pate on 8/14/2023. (cwl,) (Entered: 08/14/2023)
17	Aug 16, 2023	Unopposed MOTION for Extension of Time by Steve Marshall. (Seiss, Benjamin) Modified on 8/16/2023 to correct motion event and clarify text (cwl,). (Entered: 08/16/2023)
18	Aug 16, 2023	MOTION to Consolidate Cases by Steve Marshall. (Seiss, Benjamin) (Entered: 08/16/2023)
19	Aug 16, 2023	TEXT ORDER granting 17 Unopposed MOTION for Extension of Time. Signed by

Entry #	Filing Date	Description
		Magistrate Judge Kelly F. Pate on 8/16/2023. (no pdf attached) (cwl,) (Entered: 08/16/2023)
20	Aug 16, 2023	Case Reassigned to Honorable Judge Myron H. Thompson as presiding Judge and Magistrate Judge Kelly F. Pate as referral Judge. Magistrate Judge Kelly F. Pate no longer assigned to the case as presiding Judge. (cwl,) (Entered: 08/16/2023)
21	Aug 18, 2023	TEXT ORDER: A joint zoom hearing to discuss how to proceed on the 18 MOTION to Consolidate Cases is set for 8/21/2023 at 8:15 AM in ZOOM before Honorable Judge Myron H. Thompson. Signed by Honorable Judge Myron H. Thompson on 8/18/2023. (furn: calendar, ag, lw, videoconference) (No pdf attached)(cwl,) (Entered: 08/18/2023)
22	Aug 21, 2023	ORDER: it is ORDERED that: (1) The motion to consolidate (Doc. 18) in civil action no. 2:23cv450-MHT and the motion to consolidate (Doc. 23) in civil action no. 2:23cv451-MHT are granted. (2) Civil action no. 2:23cv450-MHT and civil action no. 2:23cv451-MHT are consolidated. (3) Civil action no. 2:23cv450-MHT is the lead case. (4) All future filings should be made in only civil action no. 2:23cv450-MHT, though the filings should still bear the double style as reflected in this order. (5) The clerk of the court is to refile Doc. 1, Doc. 17, and Doc. 21 from 2:23cv451-MHT on the docket in 2:23cv450-MHT, with new docket numbers in 2:23cv450-MHT. (6) Defendant is still allowed until August 28, 2023, to respond to the two complaints in these consolidated cases. (7) Civil action no. 2:23cv451-MHT is closed administratively. Signed by Honorable Judge Myron H. Thompson on 8/21/2023. (cwl,) (Entered: 08/21/2023)
26	Aug 21, 2023	Minute Entry for proceedings held before Honorable Judge Myron H. Thompson: Motion Hearing held on 8/21/2023 re 18 MOTION to Consolidate Cases filed by Steve Marshall (PDF available for court use only). (Court Reporter Patricia G. Starkie, 334-322-8053, patricia_starkie@almd.uscourts.gov.) (ag,) (Entered: 08/21/2023)
27	Aug 28, 2023	MOTION for Summary Judgment by Yellowhammer Fund. (Attachments: # 1 Affidavit of Jenice Fountain In Support of Plaintiffs Motion for Summary Judgment, # 2 Affidavit of Kari White In Support of Plaintiffs Motion for Summary Judgment, # 3 Affidavit of Kelsea McLain In Support of Plaintiffs Motion for Summary Judgment, # 4 Affidavit of Paige Suelzle In Support of Plaintiffs Motion for Summary Judgment)(Johnson, Jamila) (Entered: 08/28/2023)
28	Aug 28, 2023	MOTION to Dismiss by Steve Marshall. (Seiss, Benjamin) (Entered: 08/28/2023)
29	Aug 29, 2023	TEXT ORDER: Setting a Zoom Hearing on the 27 MOTION for Summary Judgment and 28 MOTION to Dismiss for 9/5/2023 at 2:00 PM before Honorable Judge Myron H. Thompson. Signed by Honorable Judge Myron H. Thompson on 8/29/2023. (furn: calendar, ag, lw, videoconference) (no pdf attached)(cwl,) (Entered: 08/29/2023)
30	Sep 1, 2023	Joint NOTICE Regarding Briefing Schedule by Steve Marshall, Alabama Women's Center, Yashica Robinson, West Alabama Women's Center, Yellowhammer Fund. (Seiss, Benjamin) Modified on 9/1/2023 to add as also filed on behalf of the Plaintiffs (amf,). (Entered: 09/01/2023)
31	Sep 5, 2023	Minute Entry for proceedings held via Zoom before Honorable Judge Myron H. Thompson: Status Conference re 27 MOTION for Summary Judgment and 28 MOTION to Dismiss held on 9/5/2023 (PDF available for court use only). (Court Reporter Patricia Starkie, 334-322-8053, Patricia_Starkie@almd.uscourts.gov.) (kr,) (Entered: 09/05/2023)
32	Sep 6, 2023	ORDER: it is ORDERED that: (1) Defendant's motion to dismiss (Doc. 28) is set for

Entry #	Filing Date	Description
		oral argument on October 31, 2023, at 10:00 a.m. The courtroom deputy is to arrange for argument to be by Zoom. (2) Plaintiffs are to file responses by September 28, 2023. (3) Defendant may file a reply by October 12, 2023. (4) The court will address later the current and any future motions for summary judgment. Signed by Honorable Judge Myron H. Thompson on 9/6/2023. (furn: calendar, lw, ag) (cwl,) (Entered: 09/06/2023)
33	Sep 28, 2023	RESPONSE in Opposition re 28 MOTION to Dismiss filed by Yellowhammer Fund. (Johnson, Jamila) (Entered: 09/28/2023)
34	Sep 28, 2023	RESPONSE in Opposition re 28 MOTION to Dismiss filed by Alabama Women's Center, Yashica Robinson, West Alabama Women's Center. (Burrows, Meagan) (Entered: 09/28/2023)
35	Oct 11, 2023	NOTICE of Appearance by Charles Arthur McKay on behalf of Steve Marshall (McKay, Charles) (Entered: 10/11/2023)
36	Oct 12, 2023	REPLY in Support of 28 MOTION to Dismiss filed by Steve Marshall. (Seiss, Benjamin) Modified on 10/13/2023 to clarify text (am,). (Entered: 10/12/2023)
37	Oct 19, 2023	ORDER: It is ORDERED that the oral argument currently set for 10/31/2023, is cancelled; An order will be entered later setting a new date and time for the oral argument. Signed by Honorable Judge Myron H. Thompson on 10/19/2023. (Furnished: Calendar, AG, LW; Terminates Motion Hearing-10/31/23)(am,) (Entered: 10/19/2023)
38	Oct 31, 2023	NOTICE re: an oral inquiry as to when oral argument will be reset, as further set out. Signed by Honorable Judge Myron H. Thompson on 10/31/2023. (am,) (Entered: 10/31/2023)
39	Nov 1, 2023	NOTICE by United States of America CONCERNING POTENTIAL PARTICIPATION (Deffebach, Anna) (Entered: 11/01/2023)
	Nov 3, 2023	***Pursuant to the 39 Notice - Attorney Lisa Newman,Alexander N. Ely for United States of America added. (NO PDF attached to this entry) (am,) (Entered: 11/03/2023)
40	Nov 9, 2023	Statement of the United States in Support of Plaintiffs' Right to Travel Claim filed by United States of America. (Ely, Alexander) Modified on 11/13/2023 to clarify text (am,). (Entered: 11/09/2023)
41	Jan 31, 2024	MOTION for Leave to Appear as co-counsel (NOTICE of Appearance) by Yellowhammer Fund. (Attachments: # 1 Text of Proposed Order NOA Proposed Order) (Mccrary, Latasha) Modified on 1/31/2024 to clarify text (AM). (Entered: 01/31/2024)
	Jan 31, 2024	NOTICE of Appearance by Latasha Lanette Mccrary on behalf of Yellowhammer Fund (no pdf attached - see doc 41 for pdf) (CWL) (Entered: 01/31/2024)
42	Jan 31, 2024	TEXT ORDER denying 41 Motion for Leave to Appear as co-counsel as unnecessary. Counsel's notice of appearance is sufficient. Signed by Honorable Judge Myron H. Thompson on 1/31/2024. (no pdf attached) (CWL) (Entered: 01/31/2024)
43	Feb 6, 2024	MOTION to Withdraw as Attorney Ms. Ashley N. Light by Yellowhammer Fund. (Light, Ashley) (Entered: 02/06/2024)
44	Feb 6, 2024	TEXT ORDER granting 43 Motion for Ashley N. Light to Withdraw as Attorney. Signed by Honorable Judge Myron H. Thompson on 2/6/2024. (no PDF attached to this entry) (BES) (Entered: 02/06/2024)

Entry #	Filing Date	Description
	Feb 6, 2024	***PURSUANT TO THE 44 TEXT ORDER - Attorney Ashley Nicole Light terminated. (no PDF attached to this entry) (BES) (Entered: 02/06/2024)
45	Feb 8, 2024	Motion for Admission Pro Hac Vice for Juanluis Rodriguez (Filing fee \$75 receipt number AALMDC-3581963.) by Yellowhammer Fund. (Attachments: # 1 Exhibit A-Certificate of Good Standing) (Mccrary, Latasha) Modified on 2/9/2024 to add attorney's nmae (AM). (Entered: 02/08/2024)
	Feb 8, 2024	***Pursuant to the 45 Motion - Attorney Juanluis Rodriguez for Yellowhammer Fund added. (NO PDF attached to this entry) (AM) (Entered: 02/09/2024)
46	Feb 9, 2024	TEXT ORDER: GRANTING the 45 Motion for Admission Pro Hac Vice for Juanluis Rodriguez. Signed by Honorable Judge Myron H. Thompson on 2/9/2024. (NO PDF attached to this entry) (AM) (Entered: 02/09/2024)
47	May 6, 2024	NOTICE of Supplemental Authority in Support of Opposition to 28 Motion to Dismiss, by Alabama Women's Center, Yashica Robinson, West Alabama Women's Center (Attachments: # 1 Exhibit A) (Burrows, Meagan) Modified on 5/6/2024 to to add linkage & clarify text (AM). (Entered: 05/06/2024)
48	May 6, 2024	OPINION AND ORDER: it is ORDERED as follows: (1) The defendant's 28 motion to dismiss is granted as to the overbreadth claim and fair-notice due process claim, which are dismissed. (2) The defendant's motion to dismiss is denied as to the following claims: the right-to-travel claim, the freedom-of-speech claim (including the argument that facilitating abortions constitutes expressive conduct), the freedom-of-association claim, and the extraterritoriality claim. Signed by Honorable Judge Myron H. Thompson on 5/6/2024. (BES) (Entered: 05/06/2024)
49	May 7, 2024	ORDER: it is ORDERED as follows: A status conference is set for 5/15/2024, at 8:30 a.m., to discuss the next steps in the case. The courtroom deputy shall arrange for the status conference to be by Zoom. Three business days before the status conference, the parties are to file proposals on how to proceed in this case. The court understands that a motion for summary judgment (Doc. 27) is still pending. Signed by Honorable Judge Myron H. Thompson on 5/7/2024. (HRR) (Entered: 05/07/2024)
50	May 8, 2024	Motion for Jessica Quinter to Appear Pro Hac Vice (Filing fee \$ 100 receipt number AALMDC-3636550.) by Alabama Women's Center, Yashica Robinson, West Alabama Women's Center. (Attachments: # 1 Exhibit Certificate of Good Standing, # 2 Text of Proposed Order Proposed Order) (Mollman, Alison) Modified on 5/8/2024 to add attorneys name(HRR). (Entered: 05/08/2024)
	May 8, 2024	***Pursuant to the 50 Motion - Attorney Jessica Quinter for Alabama Women's Center, Jessica Quinter for Yashica Robinson, Jessica Quinter for West Alabama Women's Center added. (NO PDF attached) (AM) (Entered: 05/08/2024)
51	May 8, 2024	TEXT ORDER: GRANTING the 50 Motion for Jessica Quinter to Appear Pro Hac Vice. Signed by Honorable Judge Myron H. Thompson on 5/8/2024. (NO PDF attached) (AM) (Entered: 05/08/2024)
52	May 10, 2024	Joint Proposal for Proceeding with Case Pursuant to 49 Order and Proposed Briefing Schedule by Alabama Women's Center, Yashica Robinson, West Alabama Women's Center, Yellowhammer Fund, & Steve Marshall. (Burrows, Meagan) Modified on 5/10/2024 to add joint filer & clarify text (AM). (Entered: 05/10/2024)
53	May 15, 2024	Minute Entry for proceedings held before Honorable Judge Myron H. Thompson:

Entry #	Filing Date	Description
		Status Conference held on 5/15/2024 (PDF available for court use only). (Court Reporter Katie Silas, 334-315-0363, katie_silas@almd.uscourts.gov.) (MLF) (Entered: 05/15/2024)
54	May 15, 2024	ORDER: it is ORDERED that plaintiff Yellowhammer Fund's motion for summary judgment (Doc. 27) is denied without prejudice, and said plaintiff shall file another motion for summary judgment in accordance with the scheduling order entered today. Signed by Honorable Judge Myron H. Thompson on 5/15/2024. (HRR) (Entered: 05/15/2024)
55	May 15, 2024	SCHEDULING ORDER: is ORDERED as follows: (1) The deadline for the defendant to file an answer or answers to the plaintiffs' complaints is May 20, 2024. (2) The deadline for all parties to file motion for summary judgment is June 17, 2024. (3) The deadline for the parties to file oppositions to the motions for summary judgment is July 15, 2024. (4) The deadline for the parties to file replies in support of their motions for summary judgment is July 22, 2024. Signed by Honorable Judge Myron H. Thompson on 5/15/2024. (HRR) Modified on 5/16/2024 to reflect correct title (AM). (Entered: 05/15/2024)
	May 15, 2024	Pursuant to the 55 Scheduling Order Set Deadlines: Answers due 5/20/2024; Motions for Summary Judgment due by 6/17/2024. (NO PDF attached) (AM) (Entered: 05/16/2024)
56	May 20, 2024	ANSWER to 1 Complaint, by Steve Marshall. (Seiss, Benjamin) (Entered: 05/20/2024)
57	May 20, 2024	ANSWER to 23 Complaint,,,, by Steve Marshall. (Seiss, Benjamin) (Entered: 05/20/2024)
58	May 20, 2024	NOTICE OF FILING OF OFFICIAL TRANSCRIPT of Status Conference - ZOOM (PDF ACCESS RESTRICTED FOR 90 DAYS) held on 5/15/2024, before Judge Myron H. Thompson. Court Reporter/Transcriber Katie Silas, Telephone number (334) 315-0363. Transcript may be viewed at the court public terminal or purchased through the Court Reporter/Transcriber before the deadline for Release of Transcript Restriction. After that date it may be obtained through PACER. NOTICE OF INTENT TO REQUEST REDACTION DUE WITHIN 7 BUSINESS DAYS. Redaction Request due 6/10/2024. Redacted Transcript Deadline set for 6/20/2024. Release of Transcript Restriction set for 8/19/2024. (BES) (Entered: 05/21/2024)
	May 20, 2024	***Pursuant to the 57 Answer - Attorney Brenton Merrill Smith for Steve Marshall added. (NO PDF attached) (AM) (Entered: 05/21/2024)
59	Jun 12, 2024	MOTION to Amend/Correct Caption by Alabama Women's Center, Yashica Robinson. (Mollman, Alison) (Entered: 06/12/2024)
60	Jun 17, 2024	MOTION for Summary Judgment by Alabama Women's Center, Yashica Robinson, West Alabama Women's Center. (Attachments: # 1 Brief In Support of Motion for Summary Judgment, # 2 Exhibit A, # 3 Exhibit B, # 4 Text of Proposed Order) (Mollman, Alison) (Entered: 06/17/2024)
61	Jun 17, 2024	MOTION for Summary Judgment by Yellowhammer Fund. (Attachments: # 1 Affidavit of Jenice Fountain In Support of Motion for Summary Judgment, # 2 Affidavit of Kelsea McLain In Support of Motion for Summary Judgment, # 3 Affidavit of Paige Suelzle In Support of Motion for Summary Judgment, # 4 Affidavit of Kari White In Support of Motion for Summary Judgment) (Johnson, Jamila) (Entered: 06/17/2024)
62	Jun 17, 2024	MOTION for Summary Judgment by Steve Marshall. (Seiss, Benjamin) (Entered: 06/

Entry #	Filing Date	Description
		17/2024)
63	Jun 24, 2024	ORDER: granting 59 MOTION to Amend/Correct Caption. Signed by Honorable Judge Myron H. Thompson on 6/24/2024. (LAB) Modified text on 6/24/2024 (LAB). (Entered: 06/24/2024)
64	Jul 11, 2024	NOTICE of Appearance by Dylan L. Mauldin on behalf of Steve Marshall (Mauldin, Dylan) (Entered: 07/11/2024)
65	Jul 15, 2024	RESPONSE in Opposition re 62 MOTION for Summary Judgment filed by Yellowhammer Fund. (Rodriguez, Juanluis) (Entered: 07/15/2024)
66	Jul 15, 2024	RESPONSE to Motion re 60 MOTION for Summary Judgment , 61 MOTION for Summary Judgment filed by Steve Marshall. (Seiss, Benjamin) (Entered: 07/15/2024)
67	Jul 15, 2024	Brief in Opposition re 62 MOTION for Summary Judgment filed by Alabama Center for Reproductive Iternatives, LLC,, Yashica Robinson, West Alabama Women's Center. (Burrows, Meagan) Modified text on 7/16/2024 (LAB). (Entered: 07/15/2024)
68	Jul 22, 2024	RESPONSE in Support re 62 MOTION for Summary Judgment filed by Steve Marshall. (Seiss, Benjamin) (Entered: 07/22/2024)
69	Jul 22, 2024	REPLY to Response to Motion re 61 MOTION for Summary Judgment filed by Yellowhammer Fund. (Johnson, Jamila) (Entered: 07/22/2024)
70	Jul 22, 2024	REPLY in Support re 60 MOTION for Summary Judgment filed by Alabama Center for Reproductive Iternatives, LLC,, Yashica Robinson, West Alabama Women's Center. (Burrows, Meagan) Modified text on 7/23/2024 (LAB). (Entered: 07/22/2024)
71	Aug 5, 2024	NOTICE by United States of America of Potential Participation (Ely, Alexander) (Entered: 08/05/2024)
72	Aug 19, 2024	BRIEF/MEMORANDUM in Support Supplemental Statement of Interest filed by United States of America. (Ely, Alexander) (Entered: 08/19/2024)
73	Aug 26, 2024	MOTION to Withdraw as Attorney Jessica Quinter by Alabama Center for Reproductive Iternatives, LLC,, Yashica Robinson, West Alabama Women's Center. (Quinter, Jessica) (Entered: 08/26/2024)
74	Aug 26, 2024	TEXT ORDER: granting 73 Motion to Withdraw as Attorney. Attorney Jessica Quinter terminated. Entered by Honorable Judge Myron H. Thompson on 8/26/2024. (LAB) (Entered: 08/26/2024)
75	Feb 5, 2025	Motion to Withdraw as Attorney as construed in 76 Order. NOTICE of Withdrawal of Counsel by United States of America (Newman, Lisa) Modified event on 2/6/2025 (LAB). (Entered: 02/05/2025)
76	Feb 6, 2025	TEXT ORDER: It is ORDERED that the notice of withdrawal of counsel (Doc. 75) is construed as a motion to withdraw as counsel, and the motion is granted. Attorney Lisa Newman terminated. Entered by Honorable Judge Myron H. Thompson on 2/6/2025. (LAB) (Entered: 02/06/2025)
77	Feb 13, 2025	ORDERED that oral argument on the pending 60 61 62 motions for summary judgment is set for 2/25/2025 10:00 AM via video conference before Honorable Judge Myron H. Thompson. Signed by Honorable Judge Myron H. Thompson on 2/13/2025. (LAB) (Entered: 02/13/2025)

Entry #	Filing Date	Description
78	Feb 18, 2025	MOTION Reschedule Oral Argument by Steve Marshall. (Attachments: # 1 Pretrial Order in Milligan v. Allen) (McKay, Charles) (Entered: 02/18/2025)
79	Feb 18, 2025	RESPONSE to Motion re 78 MOTION Reschedule Oral Argument filed by Alabama Center for Reproductive Iternatives, LLC,, Yashica Robinson, West Alabama Women's Center. (Burrows, Meagan) (Entered: 02/18/2025)
80	Feb 19, 2025	ORDER: it is ORDERED that the 78 motion to reschedule oral argument is granted, and the oral argument on the pending motions for summary judgment (Doc. 60 , Doc. 61 , and Doc. 62), currently set for February 25, 2025, is continued to March 5, 2025, at 10:00 a.m., by videoconference. Signed by Honorable Judge Myron H. Thompson on 2/19/2025. (Term Hearings: Motion Hearing set for 02/25/2025)(BES) (Entered: 02/19/2025)
81	Mar 5, 2025	Minute Entry for proceedings held before Honorable Judge Myron H. Thompson: Motion Hearing held on 3/5/2025 re 60 MOTION for Summary Judgment filed by Alabama Women's Center, West Alabama Women's Center, Yashica Robinson, 61 MOTION for Summary Judgment filed by Yellowhammer Fund, 62 MOTION for Summary Judgment filed by Steve Marshall (PDF available for court use only). (Court Reporter Katie Silas, 334-315-0363, katie_silas@almd.uscourts.gov.) (MLF) (Entered: 03/06/2025)
82	Mar 7, 2025	ORDER that if Yellowhammer Fund wants the declarations (or portions of them) to be placed under seal, it needs to file a motion to that effect. Signed by Honorable Judge Myron H. Thompson on 3/7/2025. (See Order for Further Details) (LAB) (Entered: 03/07/2025)
83	Mar 12, 2025	NOTICE by Yellowhammer Fund To The Court (Johnson, Jamila) (Entered: 03/12/2025)
84	Mar 31, 2025	OPINION. Signed by Honorable Judge Myron H. Thompson on 3/31/2025. (WCL) (Entered: 03/31/2025)
85	Mar 31, 2025	JUDGMENT: it is the ORDER, JUDGMENT, and DECREE of the court as follows: (1) Plaintiffs' motions for summary judgment (Doc. 60 and Doc. 61) are granted as to all of the right-to-travel claims except the one brought by plaintiff Yellowhammer Fund in its own behalf. The motions are also granted as to the freedom-of-speech claims and the expressive-conduct claim as to 'funding.' The motions are denied as to the expressive-conduct claim as to 'transportation.' And the motions are denied as to the claims the court declined to resolve, and those claims are dismissed without prejudice. (2) Defendant's motion for summary judgment (Doc. 62) is granted as to plaintiffs' expressive-conduct claim as to 'transportation' and is denied in all other respects. (3) Judgment is entered in favor of plaintiffs and against defendant as to all but one of the right-to-travel claims, the freedom-of-speech claims, and the expressive-conduct claim as to 'funding.' Judgment is entered in favor of defendant and against plaintiffs as to the expressive-conduct claim as to 'transportation.' (4) It is DECLARED that the defendant's use of the provisions of Alabama's criminal code to prosecute those who assist individuals seeking to leave Alabama to obtain abortion care in a State where abortion is legal would violate both the First Amendment and the right to travel. The court retains jurisdiction to issue an injunction to enforce the declaratory judgment and to provide other relief, should such become necessary. It is further ORDERED that costs are taxed against defendant, for which execution may issue. The clerk of the court is DIRECTED to enter this document on the civil docket as a final judgment

Entry #	Filing Date	Description
		pursuant to Rule 58 of the Federal Rules of Civil Procedure. These two consolidated cases are closed. Signed by Honorable Judge Myron H. Thompson on 3/31/2025. (WCL) (Entered: 03/31/2025)
86	Apr 9, 2025	MOTION for Extension of Deadline to Seek Attorneys' Fees and Non-Taxable Costs by Alabama Center for Reproductive Alternatives, LLC, Yashica Robinson, West Alabama Women's Center. (Burrows, Meagan) (Entered: 04/09/2025)
87	Apr 9, 2025	MOTION for Extension of Deadline to Seek Attorneys' Fees and Related Non-Taxable Expenses by Yellowhammer Fund. (Johnson, Jamila) (Entered: 04/09/2025)
88	Apr 10, 2025	ORDERED that: (1) The 86 , 87 motions are granted. (2) The deadline for plaintiffs to seek attorneys' fees and related non-taxable expenses is extended to May 14, 2025, if no appeal is filed, and, if an appeal is filed, to 14 days after the entry of the mandate at the conclusion of the appeal. Signed by Honorable Judge Myron H. Thompson on 4/10/2025. (CWL) (Entered: 04/10/2025)
89	May 2, 2025	Joint NOTICE of Intent Regarding Attorneys' Fees and Costs by Alabama Center for Reproductive Alternatives, LLC, Yashica Robinson, West Alabama Women's Center, Yellowhammer Fund (Burrows, Meagan) Modified text on 5/2/2025 (LAB). (Entered: 05/02/2025)
90	Jun 5, 2025	NOTICE OF FILING OF OFFICIAL TRANSCRIPT of MOTION HEARING VIA ZOOM Proceedings (PDF ACCESS RESTRICTED FOR 90 DAYS) held on March 5, 2025, before THE HONORABLE MYRON H. THOMPSON. Court Reporter/Transcriber KATIE SILAS, Telephone number 334.315.0363. Transcript may be viewed at the court public terminal or purchased through the Court Reporter/Transcriber before the deadline for Release of Transcript Restriction. After that date it may be obtained through PACER. NOTICE OF INTENT TO REQUEST REDACTION DUE WITHIN 7 BUSINESS DAYS. Redaction Request due 6/26/2025. Redacted Transcript Deadline set for 7/7/2025. Release of Transcript Restriction set for 9/3/2025. (LAB) (Entered: 06/06/2025)